5 Wall. 475 (1867). But 13 years before *O'Neil*, the Court had applied the Eighth Amendment's ban on cruel and unusual punishments to a Territory. See *Wilkerson* v. *Utah*, 99 U. S. 130 (1879) (holding that execution by firing squad was not prohibited by the Eighth Amendment). In *Louisiana ex rel. Francis* v. *Resweber*, 329 U. S. 459, 462 (1947), the Court assumed, without deciding, that the Eighth Amendment applied to the States. Any confusion created by *O'Neil*, *Wilkerson*, and *Francis* was eliminated in *Robinson* v. *California*, 370 U. S. 660, 666–667 (1962), in which the Court, albeit without discussion, reversed a state conviction for the offense of narcotics addiction as constituting cruel and unusual punishment and being repugnant to the Fourteenth Amendment. Since *Robinson*, the Cruel and Unusual Punishments Clause has been regularly applied to the States, most notably in the capital sentencing context. In addition, the Court has assumed that the Excessive Bail Clause of the Eighth Amendment applies to the States. See *Schilb* v. *Kuebel*, 404 U. S. 357, 365 (1971). I see no reason to distinguish one Clause of the Eighth Amendment from another for purposes of incorporation, and would hold that the Excessive Fines Clause also applies to the States.

B

In the words of Chief Justice Marshall, a corporation is "an artificial being, invisible, intangible, and existing only in contemplation of law." *Dartmouth College* v. *Woodward*, 4 Wheat. 518, 636 (1819). As such, it is not entitled to "'purely personal' guarantees" whose "'historic function' . . . has been limited to the protection of individuals." *First National Bank of Boston* v. *Bellotti*, 435 U. S. 765, 779, n. 14 (1978). Thus, a corporation has no Fifth Amendment privilege against self-incrimination, *Wilson* v. *United States*, 221 U. S. 361 (1911), or right to privacy, *United States* v. *Morton Salt Co.*, 338 U. S. 632 (1950). On the other hand, a corporation has a First Amendment right to freedom